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GENEX UK LIMITED
TERMS AND CONDITIONS OF PURCHASE

1 Definitions and scope

1.1 “Genex” means Genex UK Limited. “Supplier” means the person or business supplying Goods or Services to Genex.

1.2 “Goods” includes materials, components, equipment and other products. “Services” includes subcontract processing, manufacturing, maintenance, installation, consultancy and other services specified in the Order.

1.3 “Order” means Genex’s written purchase order and documents expressly incorporated into it. “Contract” means an accepted Order incorporating these terms.

1.4 “Specification” means the agreed drawings, revision levels, material grades, tolerances, finishes, performance requirements, scope of work and other technical requirements.

1.5 “Genex Property” includes materials, components, drawings, samples, fixtures, equipment and other property supplied by or belonging to Genex or its customers.

1.6 “Working day” means Monday to Friday, excluding public holidays in England. “Writing” includes email.

2 Formation and priority

2.1 Each Order is an offer to purchase on these terms. The Supplier accepts by written acceptance or by beginning performance after receiving the Order and these terms.

2.2 Supplier terms contained in quotations, acknowledgements, delivery notes, invoices, websites or other documents do not apply unless expressly accepted in writing by an authorised Genex representative.

2.3 Any qualification or proposed departure must be identified before acceptance. A qualified acknowledgement is a counter-offer requiring Genex’s express written acceptance.

2.4 The Supplier must not assume that silence, payment, receipt of Goods or an administrative acknowledgement constitutes acceptance of its alternative terms.

2.5 Expressly agreed special conditions take priority, followed by the Order, these terms and the Specification. Technical requirements govern technical matters only. Conflicts must be referred to Genex before affected work proceeds.

2.6 Only authorised Genex representatives may place or vary Orders. Forecasts, enquiries and discussions do not themselves authorise expenditure.

3 Prices and additional charges

3.1 Prices are fixed for the accepted Order unless it expressly provides an adjustment mechanism.

3.2 No increase, surcharge, minimum-order charge or additional expense is payable without Genex’s prior written agreement.

3.3 Unless the Order states otherwise, prices include packaging, marking, carriage, insurance, delivery and all costs necessary to perform the Contract, excluding VAT properly chargeable.

3.4 Changes in the Supplier’s material, labour, energy, transport or subcontract costs do not themselves entitle it to increase an accepted price.

3.5 Where an adjustment mechanism is agreed, the Supplier must provide the required notice and supporting information. No adjustment applies retrospectively.

3.6 Prices for future unaccepted Orders remain subject to agreement.

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4 Specification and supplier responsibilities

4.1 Goods and Services must comply with the Contract, applicable law and any standards expressly incorporated into the Order.

4.2 Goods must be of satisfactory quality, free from material defects and, unless otherwise agreed, new and unused. They must be fit for any purpose made known to the Supplier where Genex reasonably relies on its skill or judgement.

4.3 Services must be performed with reasonable skill and care by suitably competent personnel, using appropriate equipment and processes.

4.4 The Supplier is responsible for design it undertakes. Manufacture to a Genex design does not make the Supplier responsible for that design, but it must promptly identify discrepancies or apparent unsuitability that a competent supplier should reasonably recognise.

4.5 The Supplier must verify drawing revisions and resolve conflicting or incomplete instructions before proceeding.

4.6 No substitution of material, grade, source, manufacturing location, process or specification affecting conformity, traceability or an agreed approval is permitted without prior written consent.

4.7 The Supplier must hold the licences, permissions and qualifications required for its work. Any expressly required certification must remain valid, and material suspension or withdrawal must be notified promptly.

5 Quality inspection and traceability

5.1 The Supplier must operate controls appropriate to the Goods or Services and maintain the traceability expressly required by the Order.

5.2 Required certificates, inspection results, process records, safety information and declarations must accompany delivery or be supplied at the agreed time. Documents must accurately relate to the supplied batch.

5.3 The Supplier must not knowingly supply counterfeit, misidentified or unauthorised material or components.

5.4 First-off approval, sample approval or a concession applies only to the features, quantities and duration expressly identified. It does not authorise other departures.

5.5 The Supplier must promptly notify Genex of any actual or reasonably suspected nonconformity affecting delivered or outstanding supply, identifying affected batches and containment measures.

5.6 Relevant quality and traceability records must be retained for six years after delivery or completion, or longer where required by law or expressly agreed. Relevant copies must be provided on reasonable request.

5.7 Genex may inspect relevant work and records on reasonable notice, subject to proportionate confidentiality and site-safety arrangements. Inspection or approval does not relieve the Supplier of its obligations.

6 Delivery and completion

6.1 The Supplier must meet agreed delivery dates, quantities and service milestones. Agreed delivery and completion dates are essential contractual requirements unless the Order states otherwise.

6.2 The Supplier must promptly warn Genex of any actual or anticipated delay, its cause, likely duration and recovery plan. Notification does not itself extend the deadline.

6.3 Partial, early or excess deliveries require prior approval. Genex need not pay for unauthorised excess quantities.

6.4 Goods must be delivered to the stated location during agreed receiving hours, safely packaged and clearly marked with the purchase order number, part identification, quantity and relevant batch information.

6.5 The Supplier is responsible for safe transport and unloading unless the Order allocates unloading to Genex.

6.6 If a deadline is missed, Genex may require a reasonable recovery plan, obtain replacement supply or terminate the affected outstanding portion by written notice. Recovery costs remain subject to clause 13.

6.7 Genex must take reasonable steps to reduce loss. It will not recover twice for the same supply or loss.

7 Risk and ownership

7.1 Risk in Goods remains with the Supplier until delivery and completion of any unloading for which it is responsible.

7.2 Ownership passes on delivery or payment, whichever occurs first. Goods must pass free from undisclosed charges and third-party claims.

7.3 Where Genex pays before delivery, the Supplier must identify and segregate the relevant Goods as Genex's property and must not substitute or dispose of them without consent. Risk remains with the Supplier until delivery.

7.4 Payment for unidentified stock does not, by itself, establish ownership of specific Goods. Any substantial advance payment requires agreed identification and, where appropriate, additional security.

7.5 Risk in validly rejected Goods passes back to the Supplier on rejection notice. Genex will exercise reasonable care while holding them.

7.6 Any agreed delivery rule or special ownership arrangement takes priority over inconsistent provisions of this clause.

8 Inspection acceptance and warranty

8.1 Signing a delivery note confirms receipt only. Payment, inspection, processing or onward delivery does not by itself waive a defect claim.

8.2 Genex must have a reasonable opportunity to inspect and test. Equipment or Services subject to expressly agreed acceptance tests are accepted when those tests are successfully completed and acceptance is confirmed in writing.

8.3 Genex will notify reasonably apparent defects promptly following inspection and latent defects promptly after discovery. No short Supplier notification deadline applies unless expressly accepted.

8.4 The Supplier warrants compliance with clause 4 for 12 months from delivery of Goods or completion of Services. For equipment requiring commissioning under the Order, the warranty begins on successful commissioning and acceptance.

8.5 Repaired or replaced items and reperformed Services carry a further 12-month warranty from their return or completion, limited to the remedial supply.

8.6 The warranty supplements other contractual and statutory rights. It does not impose a 12-month limitation period on all claims.

8.7 Genex's claim is reduced to the extent a defect or additional loss is caused by Genex's misuse, unauthorised modification or failure to follow adequate instructions supplied under the Contract.

9 Defective supply and corrective action

9.1 For nonconforming supply, Genex may reasonably require repair, replacement, reperformance or refund of the affected price. The remedy must be provided at the Supplier's expense within a timescale reasonably required by the circumstances.

9.2 Genex may reject the affected supply or terminate the affected portion where the breach is sufficiently serious, timely remedy is unavailable or an attempted remedy fails.

9.3 Where practicable, Genex will give the Supplier an opportunity to inspect and remedy before appointing others at its expense.

9.4 Genex may take reasonable immediate containment or corrective action where necessary for safety, to prevent materially greater loss or where the Supplier cannot respond within the reasonably required time.

9.5 The Supplier must reimburse reasonable evidenced costs attributable to its breach, including necessary inspection, sorting, rework, removal, transport, replacement procurement and damage to other work, subject to clause 13.

9.6 Customer claims against Genex are recoverable only to the extent reasonably foreseeable, properly attributable to the Supplier's breach and supported by evidence. Genex will consult the Supplier before a material settlement where practicable.

9.7 No automatic penalty or arbitrary administration fee applies. Genex must mitigate loss and avoid double recovery.

9.8 Rejected Goods must be collected within a reasonably specified period. Genex may recover reasonable resulting storage or return costs. Disposal must follow appropriate notice and applicable law.

10 Genex materials and property

10.1 Genex Property remains the property of Genex or its owner. It must be identified, protected and used only for the Order.

10.2 The Supplier must not sell, pledge, copy, lend, scrap or otherwise dispose of Genex Property without written permission.

10.3 The Supplier must exercise reasonable care, maintain suitable security and insurance, and notify Genex promptly of loss, damage or a third-party claim.

10.4 The Supplier must check supplied quantities and reasonably apparent condition on receipt and report discrepancies before processing.

10.5 Trial quantities, normal process losses and scrap allowances require prior agreement. Unauthorised losses are not automatically treated as normal wastage.

10.6 Where the Supplier is responsible for loss or damage, compensation must reflect the reasonable value of the affected property, including identifiable material and prior processing value. Liability is not restricted to the Supplier's processing charge unless expressly agreed.

10.7 Genex must disclose unusually high values or special handling requirements before delivery so appropriate arrangements can be made.

10.8 Genex Property, unused material and records must be returned promptly on request, subject to lawful arrangements for work in progress. The Supplier waives any contractual or possessory lien over Genex Property to the extent legally permitted.

10.9 Ownership and disposal of scrap and offcuts must be agreed. They do not automatically become the Supplier's property.

11 Subcontracting and personnel

11.1 The Supplier must obtain prior written approval before subcontracting Services, special processes or work involving Genex Property or confidential drawings. This does not require approval for ordinary purchases of standard inputs unless the Order states otherwise.

11.2 Approved subcontracting does not relieve the Supplier of responsibility.

11.3 Relevant quality, confidentiality, property and traceability obligations must be imposed on approved subcontractors.

11.4 The Supplier remains responsible for its personnel, employment obligations, supervision and conduct.

12 Invoices payment and disputes

12.1 Unless expressly agreed otherwise, payment is due 60 calendar days after the end of the month in which Genex receives a valid invoice, provided the relevant Goods have been delivered or Services performed.

12.2 Invoices must not be issued before the relevant delivery, completion or agreed payment milestone. An earlier invoice's payment period runs from the relevant supply or milestone.

12.3 The payment period in clause 12.1 must be expressly agreed and must not operate in a manner prohibited by applicable law. Any shorter mandatory period takes priority.

12.4 Invoices must identify the Supplier, Order, relevant supply, agreed price and applicable VAT information. Genex will notify material errors promptly. An immaterial administrative error does not automatically restart the payment period.

12.5 Payment does not constitute acceptance or waive a claim.

12.6 Genex may withhold a genuinely disputed amount after promptly explaining the basis and calculation. Undisputed amounts remain payable on time.

12.7 Genex may set off a genuine, reasonably quantified claim against the Supplier after giving written particulars, subject to applicable law. It must promptly pay any amount subsequently established as due.

12.8 Nothing excludes statutory late-payment rights where applicable. Genex's obligation to pay is not conditional on payment by its customers.

12.9 Changes to Supplier bank details must undergo Genex's verification procedure. A change notification does not itself establish that the new details are genuine.

13 Liability and insurance

13.1 The Supplier is responsible for loss caused by its breach, negligence or other wrongful act, subject to applicable rules of causation, foreseeability and mitigation.

13.2 No Supplier liability cap, exclusion or restriction applies unless expressly accepted in writing by Genex. Any agreed limit must identify its scope and exceptions.

13.3 The Supplier must maintain insurance appropriate to its activities and exposure, including public liability, product liability and cover for Genex Property where relevant, together with legally required insurance.

13.4 Professional indemnity or other specialist insurance must be agreed where the Supplier provides design or professional advice. Required limits must be stated in the Order or supplier agreement.

13.5 Insurance does not itself limit contractual liability. Reasonable evidence of relevant cover must be supplied on request, and material cancellation or reduction notified promptly.

13.6 Nothing excludes liability that cannot lawfully be excluded. No remedy permits double recovery.

14 Intellectual property and confidentiality

14.1 Each party retains its pre-existing intellectual property. Genex drawings, specifications and information remain the property of Genex or their owner.

14.2 The Supplier may use Genex information only to perform the Contract and must restrict access to those who need it under appropriate confidentiality obligations.

14.3 The Supplier must not use Genex's name, customer identity, drawings, photographs or supplied work in publicity without prior written consent.

14.4 Ownership of specifically commissioned designs, software or other intellectual property must be addressed in the Order or a signed project agreement before that work begins.

14.5 To the extent needed to use, maintain and repair the delivered supply, the Supplier grants Genex a perpetual, non-exclusive, royalty-free licence to relevant Supplier-owned background intellectual property incorporated into it, including use by Genex's customers and maintenance providers for those purposes.

14.6 The Supplier must identify any third-party licence restrictions before acceptance.

14.7 The Supplier warrants that its own contribution does not infringe third-party rights. It must reimburse reasonable losses from infringement claims attributable to that contribution, excluding claims caused by Genex designs or unauthorised changes.

14.8 Genex must promptly notify such claims, provide reasonable cooperation and allow the Supplier a reasonable opportunity to manage the defence. No settlement may impose an obligation or admission on Genex without its consent.

15 Site work safety and compliance

15.1 Personnel attending Genex or customer premises must comply with applicable health and safety law, reasonable site rules, induction and permit requirements.

15.2 The Supplier must provide risk assessments, method statements, competence evidence and safety information appropriate to the work where reasonably required.

15.3 Genex may stop unsafe work. Responsibility for resulting costs depends on the cause of the unsafe condition.

15.4 The Supplier must comply with laws applicable to its performance, including anti-bribery, sanctions, environmental and employment requirements.

15.5 Installation, construction, lifting and other regulated activities require clear allocation of relevant statutory duties before work starts. These terms do not transfer duties contrary to law.

16 Information security and personal data

16.1 The Supplier must protect Genex information against unauthorised access, loss and disclosure and promptly notify incidents affecting it.

16.2 Access to systems must be limited to authorised purposes and personnel. Access credentials must not be shared without permission.

16.3 Each party must comply with applicable data protection law.

16.4 Where the Supplier processes personal data on Genex's behalf, the parties must enter the required data processing agreement before processing begins. These general terms do not replace that agreement.

16.5 On completion or termination, Genex information must be returned or securely deleted as instructed, except for lawful retention under continuing confidentiality safeguards.

17 Changes cancellation and suspension

17.1 Genex may request changes, but their effects on price, delivery and existing commitments must be agreed in writing before implementation.

17.2 The Supplier must promptly identify unavoidable cost or timing effects and take reasonable steps to minimise them.

17.3 Genex may cancel an unperformed portion for convenience by written notice. It will pay for completed conforming supply and reasonable evidenced unavoidable commitments properly incurred before notice.

17.4 The Supplier must stop affected expenditure, mitigate loss and credit avoided costs, reuse and recoveries. No compensation is payable for anticipated profit on unperformed work, unauthorised commitments or double recovery.

17.5 Genex may request a temporary suspension. Duration, protection of work, revised dates and reasonable unavoidable costs must be agreed.

17.6 Cancellation for Supplier breach is governed by clause 18 and does not attract convenience-cancellation charges.

18 Termination and handover

18.1 Either party may terminate for a material breach which, where capable of remedy, remains unremedied 14 days after written notice.

18.2 Genex may terminate an affected portion immediately for a serious safety breach, deliberate falsification of quality records, unlawful performance or another material breach incapable of remedy.

18.3 Missed essential delivery dates are subject to clause 6.

18.4 Any insolvency-related termination right is subject to applicable law.

18.5 On termination, the Supplier must protect and return Genex Property, provide paid-for deliverables and relevant records, and reasonably cooperate with transfer of outstanding work.

18.6 Any additional transition services and charges require agreement. The Supplier must not withhold Genex Property as leverage for disputed sums where it has no lawful right to do so.

18.7 Termination preserves accrued rights and provisions intended to continue.

19 Force majeure and continuity

19.1 Neither party is liable for failure caused by an event beyond its reasonable control which it could not reasonably prevent or overcome.

19.2 The affected party must promptly explain the event, its likely effect and mitigation measures. Only affected obligations are suspended.

19.3 Lack of funds, ordinary cost increases and routine staffing or capacity problems do not themselves qualify. Subcontractor failure qualifies only where its underlying cause meets clause 19.1 and reasonable alternatives are unavailable.

19.4 Genex may obtain alternative supply during disruption without an exclusivity penalty. The parties must coordinate affected quantities to avoid duplicate supply obligations.

19.5 Either party may terminate the affected unperformed portion after 30 consecutive days of material disruption.

19.6 Completed conforming supply remains payable. Unearned advance payments must be refunded, subject to any expressly agreed allocation of authorised committed costs. No automatic cancellation penalty applies.

19.7 The Supplier must notify Genex promptly of planned discontinuation or material supply interruption and cooperate in reasonable continuity arrangements. No last-time purchase commitment arises without an accepted Order.

20 General and governing law

20.1 Neither party is committed to exclusivity, minimum volumes or future Orders unless expressly agreed.

20.2 Neither party may transfer the Contract without consent, not to be unreasonably withheld, except as expressly agreed. Approved subcontracting is governed by clause 11.

20.3 Contractual notices must be sent to the designated business postal or email address. Email notices take effect on acknowledgement or other evidence of receipt. This does not govern service of legal proceedings.

20.4 Variations require express written agreement by authorised representatives. Delay in exercising a right does not waive it.

20.5 If a provision is unenforceable, the remaining provisions continue so far as legally possible.

20.6 No third party may enforce the Contract under the Contracts (Rights of Third Parties) Act 1999.

20.7 The Contract constitutes the entire agreement concerning its subject matter, including expressly incorporated documents. Nothing excludes liability for fraud or fraudulent misrepresentation.

20.8 The Contract is governed by the law of England and Wales. The courts of England and Wales have exclusive jurisdiction.